

IN THE SUPREME COURT OF INDIA

Civil Appeal No. 3400/2024

Date of Decision: 15-05-2024

Commissioner of Income Tax ... Appellant

VERSUS

Reliance Retail Ltd ... Respondent

FACTS OF THE CASE:

1. Penalty under Section 271(1)(c) of Income Tax Act, 1961 for concealment of income.

ISSUES:

1. Disallowance of claim vs concealment of particulars.

REASONING & DECISION:

Making a bona fide legal claim does not attract penalty for concealment.

RATIO DECIDENDI:

Penalty under Section 271(1)(c) requires deliberate furnishing of inaccurate particulars.

DECISION:

Penalty order set aside.